

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2019

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOHASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Jimmy Flemister of the City of Monrovia, Montserrado
County.....Movant

Versus

The Management of the Liberia Electricity Corporation
also Monrovia, Montserrado County.....Respondents

GROWING OUT OF THE CASE:

The Management of the Liberia Electricity Corporation
of Monrovia, Montserrado County.....Appellant

Versus

Jimmy Flemister also of the City of Monrovia,
Montserrado County.....Appellee

GROWING OUT OF THE CASE:

Jimmy Flemister of the City of Monrovia, Montserrado
County.....Petitioner

Versus

The Management of the Liberia Electricity Corporation
also Monrovia, Montserrado County.....Respondents

GROWING OUT OF THE CASE:

Jimmy Flemister of the City of Monrovia,
Montserrado County.....Complainant

Versus

The Management of the Liberia Electricity
Corporation also Monrovia, Montserrado County
.....Defendant

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) MOTION TO
) DISMISS APPEAL
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) APPEAL
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) PETITION FOR
) JUDICIAL REVIEW
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)
) UNFAIR LABOR
) PRACTICE
)

HEARD: October 30, 2019

DEDIDED:

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

This case commenced with a complaint of wrongful dismissal/unfair labor practice filed by the movant/appellee, Jimmy Flemister, before the Ministry of Labor against the respondent/appellant, the Liberia Electricity Corporation (LEC), on October 21, 2014. The facts which gave rise to the dispute and as culled from the records are as follows:

The movant, Jimmy Flemister, entered into an indefinite employment contract with the respondent, the Liberia Electricity Corporation (LEC) in October 2009 to serve as a Meter Reader for a monthly salary of US\$106.92 (One Hundred and Six United States Dollars Ninety two Cents) plus L\$11,333.52 (Eleven Thousand Three Hundred and Thirty-three Liberian Dollars and Fifty-two Cents). On October 24, 2013, the Management of the LEC, respondent, called in the movant and accused him of being part of a general commercial team that was alleged to have been carrying out some illegal transactions relating to the respondent's business. The movant was suspended and after an office investigation, he was dismissed on November 8, 2013.

The movant filed a complaint to the Ministry of Labor and the Hearing Officer of the Ministry of Labor conducted a hearing into the movant's complaint. The Hearing Officer entered a final ruling, adjudging the Respondent LEC liable for wrongful dismissal and unfair labor practice and awarded the respondent US\$636.00 (Six Hundred Thirty Six United States Dollars) plus L\$67,999.92 (Sixty Seven Thousand Nine Hundred Ninety Nine Liberian Dollar and Ninety-two Cents). The movant, not being satisfied with the Hearing Officer's ruling in its entirety, excepted thereto and took the matter up to the National Labor Court on a petition for judicial review.

The National Labor Court heard the petition, and on October 22, 2018, entered ruling thereon, upholding the decision of the Hearing Officer, but with modification. The court ruled that the movant/petitioner be paid US\$4,490.64 (Four Thousand Four Hundred Ninety United States Dollars and Sixty-four Cents) and LD\$476,007.84 (Four Hundred Seventy Six Thousand, Seven Liberian Dollars and Eighty-four Cents) representing salary compensation for illegal dismissal plus an additional amount of US\$2,566.08 (Two Thousand Five Hundred Sixty Six United States Dollars and Eight Cents) and L\$272,004.48 (Two Hundred Seventy Two Thousand Four Liberian Dollars and Forty-eight Cents) representing compensation for twenty four (24) months in lieu of reinstatement consistent with law.

The Respondent LEC excepted to the National Labor Court's ruling and filed its bill of exceptions on November 22, 2018, in pursuit of an appeal to the Supreme Court. Further review of the case file reveals a Clerk's Certificate dated January

3, 2019, issued to the movant by the clerk of the National Labor Court which confirms LEC's failure to file an appeal bond and notice of completion of the appeal as required by the appeal statute. The Clerk's Certificate reads as follows:

"... This is to certify that upon a careful inspection of the records in the above captioned case, we have observed that respondent/appellant has woefully failed, refused and neglected to file its appeal bond and notice of completion of appeal within the statutory time period of sixty (60) days, that is, since the rendition of judgment on October 22, 2018; up to and including the issuance of this clerk's certificate.

Hence, this clerk's certificate.

Given under our hands and seal of this court, this 3rd Day of January, A.D. 2019.

Kish-Trokon Deedeh
Clerk of National Labor Court
Montserrado County, Republic of Liberia

Attested: _____
Felicia G. Satia
Filing Clerk, National Labor Court "

The movant annexed to its motion filed before the Supreme Court the clerk's certificate and requested the Court to order dismissed the appeal announced by the LEC, respondent, for failure to file an appeal bond and a notice of completion of appeal and thereby complete the appeal process.

Responding to the movant's motion to dismiss the appeal, the LEC admitted that it did not file an appeal bond nor a notice of completion of the appeal as stated in the movant's motion to dismiss and it conceded to being liable to the movant for unfair labor practice and wrongful dismissal. The LEC however stated that it had considered abandoning the appeal process and negotiating a settlement with the movant on the judgment award since it was not going to reinstate the movant but saw that the award made by the National Labor Court was too excessive.

When the Supreme Court had the motion to dismiss the case called for hearing on April 3, 2019, counsel for the respondent made the following submissions on the minutes of Court:

"At this stage, counsel for the respondent respectfully requests this Honorable Court for a period of one week to permit the parties to meet with the contemplation of reaching an out-of-court settlement with respect to the movant's claim from the National Labor Court. Counsel so prays. And respectfully submits."

The Court having listened to the above submission and after several exchanges, it suspended the matter for the parties to go and discuss a settlement of the matter.

The Court gave the parties a week, that is, not later than April 10, 2019, in reaching an out-of-court settlement; however, to the contrary, seven months elapsed with the matter unresolved. This necessitated the Court calling the case for hearing a second time, on October 30, 2019.

Interestingly, on the eve of the second hearing scheduled for October 30, 2019, the LEC, respondent, filed a bill of information attaching thereto a draft "*Settlement and Compromise of Judgment Agreement*" with the Clerk of Court. The bill of information essentially states that the respondent, LEC, took substantial steps towards settling with the movant but that the movant's counsel refused to cooperate by putting up unreasonable demands as conditions precedent to the signing of the attached "*Settlement and Compromise of Judgment Agreement*". The "*Settlement and Compromise of Judgment Agreement*", is worded to have the movant accept Eight Thousand United States Dollars (US\$8,000.00) as full settlement of the judgment.

In response to the respondent's allegation, the counsel for the movant denied and refuted the blame game of the respondent counsel, and intimated that it was the respondent's counsel who in fact complicated the process when he sought to obtain the movant counsel's signature before payment of the compromised amount of US\$8,000.00 as stated in the draft agreement. The movant construed the respondent's conduct as tending to have movant prematurely release the respondent of all liabilities under the judgment without the respondent making any payment to the movant. In the mind of the movant's counsel, appending his signature to the settlement agreement without the respondent making payment for the judgment amount was a risky venture.

The Court having heard the above contentions of the counsels, it made the following ruling on the minutes of Court:

"This Court says that this case was called during the last term of Court. At that time, the lawyer for the Liberia Electricity Corporation, appellant, in this case, requested for the time to seek and effect an out-of-court settlement with the appellee. Since the Court is not a party to any case, the request was granted, especially so, since the appellee interposed no objection. The parties were advised that after reaching an agreement, they should file the appropriate instrument as provided for by the Revised Rules of the Supreme Court. A review of the records shows that no such instrument has been filed.

At the call of the case today, we see on the records a bill of information filed by the Management of Liberia Electricity Corporation.

That bill of information provides no grounds for a bill of information cognizable before the Supreme Court. That is another issue to address subsequently. The Court says that it has perused the case file and there being no instrument filed showing the intent of the parties to settle out of court, the Court will enter upon the records and make the appropriate decision in keeping with the records in the case. However, before the decision is made by the Court, the parties are at liberty to file the necessary instruments of agreement between them and to inform the Court of their agreement so that the matter can be abated and the case can be stricken from the Court's docket. If nothing is done, the Court will proceed as stated, to make the appropriate decision without any notice to the parties. And it is hereby so ordered. Ruling reserved. Matter suspended."

From the date of the above ruling on October 30, 2019, up to and including the date of this Opinion, the respondent has not filed any instrument before this Court stating that it and the movant have reached a settlement and therefore voluntarily requesting a withdrawal of the matter from the Supreme Court's docket. There being no such document of withdrawal to this effect, the Court has decided to proceed to enter Judgment upon the records as stated in its Ruling of October 30, 2019.

Based on the records before us, the lone issue is whether the Court has jurisdiction to hear the appeal where the respondent, LEC, has admitted that it failed to perfect its appeal by filing an appeal bond and a notice of completion of appeal.

This Court says that under the circumstances it does not have jurisdiction to hear the appeal in accordance with the law extant in our jurisdiction that the Supreme Court has no jurisdiction over a matter where an appellant fails to perfect its appeal as required by the Appeal Statute. *Porte v. Citibank, N.A.*, 37 LLR 126, 129-130 (1992); *Sarweah et al. v. National Port Authority (NPA)*, 42 LLR 436, 444 (2005); *Hussenni v. Brumskine, Supreme Court Opinion, March Term 2013*.

We are therefore of the considered opinion that the LEC, the respondent in this case, having knowingly elected to have its right to an appeal dispensed with, the LEC must bind itself to the judgment of the National Labor Court. Accordingly, the appellee's motion to dismiss the appeal is appeal granted and the appeal ordered dismissed.

The Clerk of this Court is hereby ordered to send a mandate down to the National Labor Court, directing the judge presiding therein to resume jurisdiction over the case and enforce its judgment, awarding the movant the sums of US\$7056.72 (Seven Thousand Fifty Six United States Dollars and Seventy-two Cents) plus L\$748,012.32 (Seven Hundred Forty Eight Thousand, Twelve Dollars and Thirty-

When this case was called for hearing, Counsellor Wellington G. Bedell of the Garlawolu and Associates Law Offices appeared for the movant. Counsellor Bobby Livingstone of Sannoh & Partners, Inc., appeared for the respondent.